

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1364

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ADMINISTRATIVE RULES; AMENDING SECTION 67-5226, IDAHO CODE, TO
REVISE PROVISIONS REGARDING THE EXPIRATION OF TEMPORARY RULES; AMEND-
ING SECTION 67-5291, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE EX-
PIRATION OF TEMPORARY RULES; AND DECLARING AN EMERGENCY AND PROVIDING
AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-5226, Idaho Code, be, and the same is hereby
amended to read as follows:

67-5226. TEMPORARY RULES. (1) If the governor finds that:
(a) Protection of the public health, safety, or welfare; or
(b) Compliance with deadlines in amendments to governing law or federal
programs; or
(c) Reducing a regulatory burden that would otherwise impact individu-
als or businesses;
requires a rule to become effective before it has been submitted for review,
the agency may proceed with such notice as is practicable and adopt a tem-
porary rule, except as otherwise provided in section 67-5229(1)(d), Idaho
Code. The agency may make the temporary rule immediately effective. The
agency shall incorporate the required finding and a concise statement of its
supporting reasons in each rule adopted in reliance upon the provisions of
this subsection.

(2) A pending fee rule adopted pursuant to subsection (1) of this sec-
tion may become effective under this section before it has been approved by
concurrent resolution only if the governor finds that the fee or charge is
necessary to avoid immediate danger.

(3) Temporary rules shall be published in the first available issue of
the bulletin.

(4) Temporary rules are not subject to the requirements of section
67-5223, Idaho Code, provided that the coordinator sends a copy of the tempo-
rary rules to the director of the legislative services office.

(5) Concurrently with the promulgation of a rule under this section, or
as soon as reasonably possible thereafter, an agency shall commence the pro-
mulgation of a proposed rule in accordance with the rulemaking requirements
of this chapter, unless the temporary rule adopted by the agency will expire
by its own terms or by operation of law pursuant to section 67-5291, Idaho
Code, before the proposed rule could become final.

SECTION 2. That Section 67-5291, Idaho Code, be, and the same is hereby
amended to read as follows:

67-5291. LEGISLATIVE REVIEW OF RULES. (1) A standing committee of the legislature shall review any temporary, pending, or final rule that is germane to its committee and has been published in the bulletin or in the administrative code to determine if the rule is consistent with the legislative intent of the statute that the rule was written to interpret, prescribe, implement, or enforce. If a reviewed rule is approved, the standing committee that approves the rule shall report its findings and recommendations to the body. If ordered by the presiding officer, the committee's report shall be printed in the journal.

(2) (a) All temporary, pending, and final rules of any nature may be approved or rejected by a concurrent resolution of the legislature. The concurrent resolution shall state the effective date of the approval or rejection.

(b) The legislature may reject a rule, in whole or in part, where the legislature determines that the rule, or part of the rule, is not consistent with the legislative intent of the statute that the rule was written to interpret, prescribe, implement, or enforce. When rejecting a rule, the legislature shall make a finding of facts as to why the rule does not meet the legislative intent of the enabling statute by identifying how the rule is inconsistent with the authority granted by or the requirements of the corresponding section of Idaho Code. For purposes of this section, "part of the rule" means a provision in a rule that is designated either numerically or alphabetically or the entirety of any new or amended language contained therein. The rejection of a rule in whole or in part shall terminate the rule, in whole or in part, as of the effective date of the rejection. An agency shall not, subsequent to the rejection, issue a proposed rule that is substantially similar to the rejected rule unless it is consistent with the legislative intent of the statute as expressed in the concurrent resolution.

(c) The secretary of state shall immediately notify the affected agency of the filing and effective date of any concurrent resolution enacted to approve or reject, in whole or in part, an agency rule. When an agency rule has been partially rejected, the secretary of state shall transmit a copy of the concurrent resolution to the director of the agency for promulgation of the rule as amended.

(d) The agency shall be responsible for implementing legislative intent as expressed in the concurrent resolution, including, as appropriate, the reinstatement of the prior rule in whole or in part, if any, in the case of a resolution rejecting a rule in whole or in part. The agency shall publish notice of rejection of a rule in whole or in part in the bulletin.

(3) A temporary rule that is not approved by a concurrent resolution shall expire by its own terms or ~~at adjournment sine die of the next succeeding regular session of the legislature~~ on June 30 of the year following the temporary rule's adoption, whichever date is earlier.

(4) Except as set forth in sections 67-5226 and 67-5228, Idaho Code, a pending fee rule that is not approved by a concurrent resolution shall expire upon adjournment sine die of the legislative session during which the agency submits the pending fee rule to the legislature for review.

1 (5) Except as set forth in sections 67-5226 and 67-5228, Idaho Code, a
2 pending non-fee rule that is not approved by a concurrent resolution shall
3 expire upon adjournment sine die of the legislative session during which the
4 agency submits the pending rule to the legislature for review.

5 (6) On and after January 1, 2024, pending fee and non-fee rules shall
6 become effective on July 1 in the year of the legislative session in which the
7 rule was approved by concurrent resolution unless otherwise specified in the
8 concurrent resolution.

9 SECTION 3. An emergency existing therefor, which emergency is hereby
10 declared to exist, this act shall be in full force and effect on and after
11 July 1, 2026.